

SOFTWARE LICENCE & SERVICES AGREEMENT

Finance Management System — Enterprise Subscription

CONTRACT SUMMARY

Field	Details
Vendor Name	FinanceCore Solutions Ltd
Client Name	Acme Corporation Ltd
Contract Reference	FCS-2024-ENT-00847
Contract Type	Enterprise Software Licence & Support
Start Date	1 June 2024
End Date	31 May 2027
Renewal Date	1 March 2027
Notice Period	90 days prior to renewal date
Contract Value	£84,000 per annum (£252,000 total)
Payment Terms	Annual in advance, due within 30 days of invoice
Auto-Renewal	Yes — unless notice given 90 days before renewal date
Currency	GBP (£)

1. PARTIES

This Software Licence and Services Agreement (the "**Agreement**") is entered into as of 1 June 2024 between:

Vendor: FinanceCore Solutions Ltd, a company registered in England and Wales (Company No. 08734512), whose registered office is at 14 Cannon Street, London, EC4M 5XR ("**Vendor**").

Client: Acme Corporation Ltd, a company registered in England and Wales (Company No. 04821933), whose registered office is at 200 Aldersgate Street, London, EC1A 4HD ("**Client**").

2. LICENCE GRANT

The Vendor grants the Client a non-exclusive, non-transferable licence to access and use the FinanceCore Enterprise Platform (the "**Software**") for the Term of this Agreement, subject to the terms and conditions herein. The licence covers up to 250 named users and unlimited read-only reporting users.

3. PRICING AND PAYMENT

Module	Annual Fee (ex. VAT)	Notes
Core Finance Platform	£48,000	Includes GL, AP, AR modules
Payroll Integration	£12,000	Up to 500 employees
Advanced Reporting	£8,400	Power BI connector included
Implementation Support	£8,400	Year 1 only

Annual Support & Maintenance	£7,200	All years
TOTAL (Year 1)	£84,000	
TOTAL (Years 2-3)	£75,600 p.a.	Excl. implementation

All fees are subject to VAT at the prevailing rate. Fees will be invoiced annually in advance on the Start Date and each anniversary thereof. Late payment interest will accrue at 4% above the Bank of England base rate.

3.1 Price Escalation

Annual licence fees for Years 2 and 3 are fixed as stated above. Upon renewal, fees may be increased by the Vendor by no more than the higher of (a) 5% or (b) the CPI rate published in the month preceding the renewal notice. The Vendor must provide written notice of any price increase at least 120 days before the renewal date.

4. TERM AND RENEWAL

Initial Term: This Agreement commences on 1 June 2024 and continues for an initial period of 3 years, expiring on 31 May 2027 (the "Initial Term").

Auto-Renewal: Unless either party provides written notice of termination no fewer than 90 days prior to the expiry of the Initial Term or any Renewal Term, this Agreement shall automatically renew for successive 12-month periods on the same terms and conditions (subject to Clause 3.1).

Renewal Date: Written notice of non-renewal must be received by the other party no later than 1 March 2027 (for the Initial Term) or 90 days before any subsequent renewal date.

5. EARLY TERMINATION AND EXIT

5.1 Termination for Convenience: The Client may terminate this Agreement before the end of the Initial Term or any Renewal Term by providing 90 days written notice, subject to payment of the Early Exit Fee as defined in Clause 5.3.

5.2 Termination for Cause: Either party may terminate this Agreement immediately upon written notice if the other party: (a) commits a material breach and fails to remedy it within 30 days of written notice; (b) becomes insolvent, enters administration, or is subject to a winding-up order; or (c) engages in fraudulent or criminal activity in connection with this Agreement.

5.3 Early Exit Fee: If the Client terminates for convenience, the following exit fees apply:

Termination During	Early Exit Fee
Year 1 (before 31 May 2025)	100% of remaining Year 1 fees + 50% of Years 2-3 fees
Year 2 (before 31 May 2026)	100% of remaining Year 2 fees + 25% of Year 3 fees
Year 3 (before 31 May 2027)	100% of remaining Year 3 fees
Any Renewal Term	100% of remaining fees in that Renewal Term

5.4 Data Return on Exit: Upon termination for any reason, the Vendor shall provide the Client with a full export of all Client data in CSV format within 14 days of the termination date, at no additional charge. Data will be retained by the Vendor for 30 days following export, after which it will be permanently deleted.

6. SERVICE LEVELS

Metric	Commitment	Remedy for Breach
Platform Uptime	99.9% monthly	Service credits (see below)
Critical Issue Response	1 hour	Escalation to senior engineer
High Priority Response	4 hours	Service credit if unresolved in 8hrs
Standard Response	1 business day	No credit
Planned Maintenance Window	Saturdays 02:00-06:00 GMT	Advance notice required

7. DATA PROTECTION

Both parties shall comply with all applicable data protection legislation including the UK GDPR and the Data Protection Act 2018. The Vendor acts as a Data Processor on behalf of the Client (Data Controller). A Data Processing Agreement (DPA) shall be executed between the parties and forms part of this Agreement.

8. LIMITATION OF LIABILITY

The Vendor's total aggregate liability under or in connection with this Agreement shall not exceed the total fees paid by the Client in the 12 months preceding the event giving rise to the claim. Neither party shall be liable for indirect, consequential, or special losses, loss of profit, or loss of data.

9. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the laws of England and Wales. The parties irrevocably submit to the exclusive jurisdiction of the courts of England and Wales.

SIGNATURES

FOR AND ON BEHALF OF VENDOR

FinanceCore Solutions Ltd

Signature: _____

Name: _____

Title: _____

Date: _____

FOR AND ON BEHALF OF CLIENT

Acme Corporation Ltd

Signature: _____

Name: _____

Title: _____

Date: _____